

Tentative Rulings for Department 502

Begin at the next page

(20)

Tentative Ruling

Re: ***Avila v. Nicholson, et al.***
Superior Court Case No. 25CECG05631

Hearing Date: September 17, 2026 (Dept. 502)

Motion: Defendant CSAA Insurance Exchange's Demurrer to Complaint

Tentative Ruling:

To sustain the demurrer as to defendants CSAA Insurance Exchange only, without leave to amend. (Code Civ. Proc., § 430.10, subd. (e).)

Explanation:

This action arises from an auto accident in which defendant George Nicholson allegedly negligently rammed plaintiff's vehicle, causing personal injuries. In addition to Nicholson, the sole cause of action for general negligence is asserted against CSAA Insurance Exchange ("CSAA," erroneously sued as AAA Insurance). Plaintiff alleges that "AAA WAS NEGLIGENT IN HANDLING MY CLAIM BECAUSE AFTER THE MANY ATTEMPTS OF ME CONTACTING JOANYS SANTIAGO ABOUT MY MEDICAL BILLS ITS BEEN TWO YEARS AND SHE HAS NOT ATTEMPT TO CONTACT ME BACK TO RESOLVE THE ISSUE." (Complaint GN-1, ¶ 4.) CSAA demurs to the Complaint.

The demurrer must be sustained because plaintiff cannot sue the defendant's insurer in her action against the alleged tortfeasor.

A practice guide explains why an insured and insurer usually may not be sued in the same action. "Generally, an insurer may not be joined as a party-defendant in the underlying action against the insured by the injured third party. The fact that an insurer has agreed to indemnify the insured for any judgment rendered in the action does not make the insurer a proper party. Liability insurance is not a contract for the benefit of the injured party so as to allow it to sue the insurer directly." (Croskey et al., *Cal. Practice Guide: Insurance Litigation* (The Rutter Group 2001) ¶ 15.44, italics omitted. (*Royal Surplus Lines Ins. Co., Inc. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 199.)

Plaintiff's claims against CSAA are not appropriately raised in this action against the insured, Nicholson. (See *Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 576; *Cooper v. Equity General Ins. Co.* (1990) 219 Cal.App.3d 1252, 1258-1260.) Moreover, there is no cognizable cause of action for third-party bad faith against an insurer. (See *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287.) Plaintiff has not filed any opposition to the demurrer.

The court intends to sustain the demurrer as to CSAA without leave to amend. "[A] trial court does not abuse its discretion by sustaining a general demurrer without leave to amend if it appears from the complaint that under applicable substantive law there is

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: img on 9-16-26.
(Judge's initials) (Date)